

1 ENGROSSED SENATE
2 BILL NO. 1636

By: Hicks and Goodwin of the
Senate

3 and

4 Ford of the House

5
6 An Act relating to law enforcement; defining terms;
7 requiring certain review upon certain request;
8 stating review criteria; clarifying individuals
9 authorized to make certain review; requiring
10 confirmation of receipt; prohibiting more than one
11 review at given time; stating time frame for which
12 certain review shall be concluded; authorizing
13 certain extension of time frame; requiring certain
14 notice; requiring certain coordination; requiring
15 certain consultation and meeting; stating time frame
16 for which additional review is prohibited; construing
17 provision; providing for codification; and providing
18 an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 146 of Title 21, unless there is
22 created a duplication in numbering, reads as follows:

23 A. For the purposes of this section:

24 1. "Case file review" means a review of all information,
evidence, records, testimonies, and other pertinent information
regarding a cold case;

2. "Cold case" means a case of violent crime, as provided for
in Section 571 of Title 57 of the Oklahoma Statutes, for which all

1 probative investigative leads have been exhausted and for which no
2 likely perpetrator has been identified;

3 3. "Designated person" means an immediate family member or
4 similar individual as determined by the law enforcement agency
5 reviewing a case file;

6 4. "Immediate family member" means the spouse, a child by birth
7 or adoption, a stepchild, a parent by birth or adoption, a
8 stepparent, a grandparent, a grandchild, a sibling, or a stepsibling
9 of a victim;

10 5. "Law enforcement agency" means any department or agency of
11 the state, a county, a municipality, or a political subdivision
12 thereof, with the duties to maintain public order, make arrests, and
13 enforce the criminal laws of this state or municipal ordinances and
14 that employs personnel certified by the Council on Law Enforcement
15 Education and Training; and

16 6. "Victim" means the victim of a violent crime.

17 B. 1. A law enforcement agency shall review the case file
18 regarding a cold case upon written application by a designated
19 person to determine if further investigation would result in
20 probative investigative leads.

21 2. The case file review shall include, but not be limited to:

- 22 a. an analysis of the investigative steps or follow-up
23 steps that may contribute to the initial
24 investigation,

- b. an assessment of whether witnesses should be interviewed or reinterviewed,
- c. a review of physical evidence to determine if all appropriate forensic testing and analyses were performed in the first instance or if additional testing might produce information relevant to the investigation, and
- d. a modernization of the file to raise it to current investigative standards to the extent that it would develop probative leads.

3. The person or persons employed by a law enforcement agency and performing the case file review shall not have previously investigated the cold case being reviewed.

4. The law enforcement agency shall confirm receipt of the request for a case file review in writing within thirty (30) days of receipt of the application pursuant to paragraph 1 of this subsection.

5. Only one case file review shall be undertaken at a time with respect to the same victim.

- a. The law enforcement agency reviewing a cold case shall, within six (6) months of receiving an application for a case file review, reach a conclusion about whether further investigation is warranted pursuant to paragraph 1 of this subsection.

1 b. The law enforcement agency shall be authorized to
2 extend the time requirement pursuant to subparagraph a
3 of this paragraph for a period of up to six (6) months
4 at a time if the law enforcement agency determines
5 that the number of case files to be reviewed would
6 make it impracticable to comply with the provisions of
7 this subsection. The law enforcement agency shall
8 provide written notice and an explanation of the
9 reasoning for extending the time frame for conclusion
10 of a case file review to the designated person who
11 made the written application pursuant to paragraph 1
12 of this subsection.

13 C. If there is more than one law enforcement agency that would
14 be subject to reviewing the same cold case, the law enforcement
15 agencies shall jointly coordinate the case file review.

16 D. 1. The law enforcement agency shall consult with the
17 designated person who filed a written application pursuant to
18 paragraph 1 of subsection B of this section and provide the
19 designated person with periodic updates during the case file review.

20 2. The law enforcement agency shall meet with the designated
21 person and discuss the findings to explain the decision whether to
22 engage in further investigation.

23 E. 1. If a case file review is completed and the law
24 enforcement agency concludes that further investigation is not

1 warranted, no additional review shall be taken for the same cold
2 case for at least five (5) years, unless new evidence that is
3 materially significant is discovered.

4 2. If a suspect is not identified after further investigation,
5 no additional case file review or further investigation shall be
6 undertaken for the same cold case for at least five (5) years.

7 F. The provisions of this section shall not be construed to
8 interfere with the ability of law enforcement to conduct further
9 investigation.

10 SECTION 2. This act shall become effective November 1, 2026.

11 Passed the Senate the 25th day of March, 2026.

12
13 _____
14 Presiding Officer of the Senate

15 Passed the House of Representatives the ____ day of _____,
16 2026.

17
18 _____
19 Presiding Officer of the House
20 of Representatives
21
22
23
24